

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSICA BRIGNOLO,

Petitioner

VS.

SIMON THORNEYCROFT,

Respondent

) Case Number: FDI-22-796491

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ORDER SHORTENING TIME; IMMEDIATE LISTING AND SALE OF
PLEASANT HILL REAL PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jessica Brignolo (Mother) and Respondent Simon Thorneycroft (Father) married on 6/12/2003. The parties agree their date of separation was in 2022 (but disagree as to the exact date), for a marriage of at least 18 years. The parties have one minor child, Siena (DOB: 9/26/2008, age 17). Mother is represented by attorney David Blacker. Father is represented by attorney Randy Rabidoux.
- 2) After the 12/11/2025 hearing, per the Findings and Order After Hearing filed 12/23/2025, the Court awarded Mother above-guideline temporary spousal support of \$8,500 per month effective 12/1/2025 after considering Mother's needs (including her monthly mortgage payment of \$3,593 and property tax payment of \$1,297) and Father's ability to pay. The Court noted this amount was less than the \$10,000 per month in support that Mother had requested given that the parties have been separated for over three years, the Court's finding that Mother's earning capacity is not \$0, and the fact that the minor child is in Father's care 100% of the time. The Court set a review

1 hearing date on 4/21/2026 (which was later continued to 5/7/2026 by agreement of the parties)
2 “to review child and temporary spousal and to review Father’s request for a Gavron warning.”

3 The Court also noted, “Given what has been pled to date, the Court intends to impute full-time
4 California minimum wage income of \$16.90 per hour to Mother at the next hearing date...”

5 3) At the 5/7/2026 hearing (per the Findings and Order After Hearing filed 5/22/2026), the Court
6 adopted its Tentative Ruling without objection and imputed full-time minimum wage income to
7 Mother. The Court ordered Mother to pay Father effective 5/15/2026 guideline child support of
8 \$469 per month and ordered Father to pay Mother above guideline temporary spousal support of
9 \$6,969 per month, for net support owing to Mother of \$6,500 per month.

10 4) The Court notes that the parties attended a Mandatory Settlement Conference on 4/3/2026 and
11 two Judicial Settlement Conferences before Judge Luna on 4/27/2026 and 5/4/2026 and were
12 unable to resolve the case.

13 5) The parties appeared for a Trial Setting Conference before Judge Chan on 6/1/2026. The matter is
14 now set for a 5-day trial spanning 12/14/2026 – 12/18/2026 in Dept. 405 before Judge Wiley.

15 6) Now on for hearing is Father’s ex parte Request for Order filed 5/8/2026 asking the Court to list
16 and sell the Pleasant Hill property in Sebastopol (where Mother resides) and to hear this request
17 on shortened time. Father states that the parties do not have liquid assets other than retirement
18 accounts, although Father has already borrowed the maximum amount from his 401(k). Father
19 states that the parties’ assets are tied up in the home equity of the Pleasant Hill property in
20 Sebastopol (where Mother resides) and the Enos property also in Sebastopol (where Father and
21 the minor child reside). Father states the Pleasant Hill property is undisputedly community
22 property. Father states that his business Perspective Branding has not generated enough revenue
23 to support both parties’ households as well as professional fees. Father states that Mother’s father
24 pays for Mother’s attorney’s fees and although Mother has produced promissory notes for these
25 payments, these were created “after the fact, to make the payments appear to be loans instead of
26 gifts or advances.” Father states he has no similar third party source of financial support. Father’s
27 attorney states Father owes over \$84,000 in outstanding fees and costs, trial preparation must
28 begin, and Father’s attorney (and other professionals working on this case) will need to withdraw
29 unless Father can replenish his retainer. Father states that the Pleasant Hill property needs to be

1 sold so that cash can be made available for reasonable attorneys' fees and professional fees to
2 prepare this case for trial.

3 7) On 5/8/2026, Mother filed a Responsive Declaration stating that there is no emergency and no
4 basis for Father to have filed an ex parte request. Mother states Father's business is profitable and
5 his expenses are unnecessarily high. Mother states the parties should explore short-term
6 borrowing against retirement assets (and states that Father presented no evidence to support his
7 assertion that he has borrowed the maximum amount from his 401(k)) to fund litigation rather
8 than a forced sale of Mother's domicile. Mother notes that Father did not submit evidence that he
9 applied for and / or was denied a home equity line of credit against the Enos property where he
10 resides. Regarding Mother's source of attorney fee payments, Mother states: "My father's
11 contributions have been documented, in part through promissory notes, and to the extent those
12 contributions constitute loans, they are obligations of mine, not unlimited resources. Further,
13 Simon presents no competent evidence that these promissory notes are not legitimate
14 obligations." Mother states, "A pendente lite request to order the sale of any community property
15 asset, let alone one of the more significant assets, is extraordinary relief. When that asset is the
16 home of one of the parties, the bar is all the higher. It may be that there is insufficient income to
17 enable both these parties to remain in their homes. Perhaps both these homes will need to be
18 sold..."

19 8) On 5/8/2026, per the Temporary Emergency Ex Parte Orders, Judge Wiley granted Father's
20 request for an Order Shortening Time and set this matter for hearing on 6/4/2026.

21 9) On 5/20/2026, Mother filed a second Responsive Declaration which restates many of the
22 arguments set forth in her 5/8/2026 Responsive Declaration and new arguments, including that
23 the Enos property has more equity than the Pleasant Hill property, that Father's appraisal
24 overestimates the value of Mother's home (and does not take into account the fact hat a redwood
25 tree fell on the Pleasant Hill roof this week), and that rents for comparable homes exceed the
26 carrying costs of Pleasant Hill. Mother states that if she is forced out of her home, she will be
27 compelled to seek additional support which she expects Father to resist vigorously. Mother states
28 that Father's request is "an abusive tactic designed to disturb my peace, create more anxiety and
29

1 financial uncertainty, to make me think that not only do I need to get ready for trial, but I need to
2 worry about where I'm going to live."

3 10) On 5/20/2026, Mother filed a Points and Authorities arguing that Father failed to make a showing
4 of good cause under Family Code section 2108. Mother argues that Father's request is actually an
5 attorney's fees request without proper support. Mother notes that a Family Law Attorney's Real
6 Property Lien (FLARPL) is a less restrictive alternative, citing Family Code section 2033(a)
7 which states: "Either party may encumber the party's interest in community real property to pay
8 reasonable attorney's fees in order to retain or maintain legal counsel in a proceeding for
9 dissolution of marriage, for nullity of marriage, or for legal separation of the parties. This
10 encumbrance shall be known as a 'family law attorney's real property lien' and attaches only to
11 the encumbering party's interest in the community real property."

12 11) On 5/20/2026, Mother's attorney filed a declaration wherein he states that the first quarter general
13 ledgers for the community property business Perspective Business which Father runs reflects:
14 "spending consistent with Simon's previous personal spending through Perspective."

15 12) On 5/29/2026, Father filed a Reply Declaration. Father states that Mother has presented no
16 evidence of alternative sources of funding for Father, including "no evidence showing that
17 additional retirement borrowing is available, can be obtained without delay, or would be a
18 prudent or adequate way to fund this case through trial." Father's attorney states that Father now
19 owes his firm more than \$100,000 in outstanding fees and costs."

20 13) On 5/29/2026, Father filed a Memorandum of Points and Authorities arguing, among other points
21 made, that he is not relying exclusively on Family Code section 2108 and he seeks an interim
22 order under "the Court's broader authority to preserve and manage community assets and to
23 ensure parity of access to counsel under sections 2030, 2032, 2040, 2553, and 290." Father's
24 attorney argues, "Section 2040, subdivision (a)(2), expressly authorizes the use of community
25 property to pay reasonable attorneys' fees pending trial, and section 2553 authorizes the Court to
26 make any orders necessary to carry out the property-division statutes. Simon's request falls
27 squarely within those statutes because it converts illiquid community equity into preserved
28 proceeds that can be administered fairly and later accounted for at trial."

1 **B. Findings and Order**

- 2 1) Family Code section 2108 states, "At any time during the proceeding, the court has the authority,
3 on application of a party and for good cause, to order the liquidation of community or quasi-
4 community assets so as to avoid unreasonable market or investment risks, given the relative
5 nature, scope, and extent of the community estate."
- 6 2) The Court finds that Father's asserted need for funds to pay attorney's fees does not constitute an
7 "unreasonable market or investment risk" within the meaning of Family Code section 2108.
- 8 3) The Court is not persuaded that the other authorities cited by Father authorize the compelled sale
9 of a community property residence (particularly one occupied by the other party) pending trial to
10 permit Father to obtain cash to pay attorney's fees.
- 11 4) Father's request to compel the sale of the Pleasant Hill residence prior to trial is denied.
- 12 5) Father's attorney shall prepare the Findings and Order After Hearing.
- 13 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).
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